

STATE OF NEW YORK
SUPREME COURT COUNTY OF KINGS

NOEL LOPEZ,

Plaintiff,

-against -

THE CITY OF NEW YORK and POLICE
OFFICER SEAN KEEGAN [Shield No. 12338]
in his individual and official capacity as a Police
Officer employed by the City of New York,

Defendants.

SUPPLEMENTAL SUMMONS

Index No.: 504946/2020

Date Filed:

*Plaintiff designates Kings
County as the Place of Trial*

*The Basis of Venue is the
Defendants' residence*

TO THE ABOVE-NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to Answer the Complaint in this action and to serve a copy of your Answer, or of the Complaint is not served with this Summons, to serve a Notice of Appearance, on the Plaintiff's Attorney within twenty (20) days after the service of this Summons, exclusive of the day of service (or within thirty [30] days after the service is complete if this Summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Complaint.

DATED: May 9, 2022
Flushing, New York

Yours, etc.,



ANDREW F. PLASSE Attorney at Law
Attorney for the Plaintiff
Office and P.O. Address
163-07 Depot Road, Suite 105
Flushing, NY 11358
(212) 695-5811

DEFENDANTS' ADDRESS:

The City of New York	Police Officer Sean Keegan [Shield No. 12338]
1 Centre Street	75 Precinct
New York, NY 10007	1000 Sutter Ave.
	Brooklyn, NY 11208

STATE OF NEW YORK
SUPREME COURT COUNTY OF KINGS

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NOEL LOPEZ,

AMENDED COMPLAINT

Index No.: 504946/2020

Plaintiff,

-against -

**THE CITY OF NEW YORK and POLICE
OFFICER SEAN KEEGAN [Shield No. 12338]
in his individual and official capacity as a Police
Officer employed by the City of New York,**

Defendants.

-----X

Plaintiff, by his attorney, ANDREW F. PLASSE & ASSOCIATES, LLC, as and for his
Complaint, hereby alleges and shows to the Court the following, all upon information and belief:

1. At all times hereinafter mentioned, the Plaintiff Noel Lopez is an individual and resides at Great Meadow Correctional Facility, PO Box 51, Comstock, NY 12821.
2. Upon information and belief, and at all times hereinafter mentioned, defendant City of New York, was and now is, a municipal corporation, existing under and incorporated under the laws of the State of New York, with its principal place of business located at the Municipal Building, One Centre Street, New York, NY 10007.
3. Upon information and belief, defendants Police Officer Sean Keegan is an individual residing in the State of New York.
4. That heretofore the Plaintiff caused a Notice of Claim, in writing, sworn to by and on behalf of the Plaintiff, to be duly served upon the defendant City of New York by delivering a copy thereof to the Office of the Comptroller of the City of New York, which said Notice of Claim set forth the name and post office address of the said Plaintiff, the nature of the claim, the time when, the place where and the manner in which said claim arose and the items of damages

or injuries claimed to have been sustained so far as then practicable; that at least ninety [90] days have elapsed since the service of said Notice of Claim and payment thereof has been refused; and that this action is being commenced within one year and ninety days after the occurrence of the event upon which this claim is based.

5. That upon information and belief, the City of New York owned, operated, controlled and maintained the New York City Police Department by charter, or by law, under the provisions of the State and/or City of New York.

6. Plaintiff hereby brings this action against the City of New York and Police Officer Sean Keegan in his individual and official capacity as a Police Officer employed by the City of New York for damages arising out of unconstitutional policies and actions arising out of an alleged excessive use of force incident which occurred on February 27, 2019.

7. Plaintiff brings this action against the individual defendants to redress the deprivation of rights secured to him by the Fourth, Fifth, Eighth and Fourteenth Amendments of the United States Constitution, the parallel rights of the New York State Constitution, and 42 U.S.C Section 1983. The claims against the individual defendant, Police Officer Sean Keegan, is brought under Federal Law, not State Law.

8. At all times hereinafter mentioned, Defendant Police Officer acted under color of state law or a statute, ordinance, regulation or custom.

STATEMENT OF FACTS

9. On February 27, 2019 at approximately 10:03 p.m., Noel Lopez was at the intersection of Montauk Ave. and Dumont Ave., Brooklyn, NY.

10. Police Officers Sean Keegan and other unknown Police Officers placed the plaintiff under arrest.

11. During the course of the arrest, the plaintiff was assaulted and battered by Police Officers Sean Keegan and the other unknown Police Officers who used excessive force without justification.

12. Plaintiff sustained a tear of his left distal biceps radius and other personal injuries.

13. Plaintiff sustained permanent personal injuries as a result of the foregoing.

PLAINTIFF'S CLAIM

14. Upon information and belief, Police Officers Sean Keegan and the other unknown Police Officers acted with actual malice toward the plaintiff and with willful and wanton indifference and deliberate disregard for the statutory and constitutional rights of the plaintiff.

15. Upon information and belief, the actions taken as aforesaid by Police Officers Sean Keegan and the other unknown Police Officers constituted excessive use of force, and deprivation of liberty without due process of law.

16. Upon information and belief, the conduct of defendants Police Officers Sean Keegan and the other unknown Police Officers violated the Fourth, Fifth, Eighth and Fourteenth Amendments of the United States Constitution.

AS AND FOR A FIRST CAUSE OF ACTION AGAINST DEFENDANT CITY OF NEW YORK, PLAINTIFF RESTATES AND REALLEGES EACH AND EVERY ALLEGATION SET FORTH IN PARAGRAPHS MARKED AND ENUMERATED "1-16" AND FURTHER ALLEGES AS FOLLOWS:

17. That the employees of the defendant as aforesaid assaulted and battered the plaintiff causing him to sustain severe personal injuries.

18. That such conduct was committed in the scope of employment with the City of New York.

19. The City of New York is liable for the intentional torts committed by its employees in the scope of their employment pursuant to the doctrine of respondeat superior.

20. That by reason of the foregoing, the plaintiff has been damaged in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A SECOND CAUSE OF ACTION AGAINST DEFENDANT CITY OF NEW YORK, PLAINTIFF RESTATES AND REALLEGES EACH AND EVERY ALLEGATION SET FORTH IN PARAGRAPHS MARKED AND ENUMERATED "1-16" AND FURTHER ALLEGES AS FOLLOWS:

21. New York City owed a duty to Plaintiff to train and supervise and otherwise control its Police Officers in the proper methods of Use of Force incidental to this matter, and in the course of their Police functions. New York City failed to provide adequate training, hiring, supervision and control for the Police Officers involved herein, and said failure constitutes negligence.

22. As a proximate result of the City of New York's negligence to provide adequate training, hiring, supervision and control of the Police Officers involved herein, Plaintiff has sustained personal injuries.

23. That by reason of the foregoing, the plaintiff has been damaged in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A THIRD CAUSE OF ACTION AGAINST DEFENDANT CITY OF NEW YORK, PLAINTIFF RESTATES AND REALLEGES EACH AND EVERY ALLEGATION SET FORTH IN PARAGRAPHS MARKED AND ENUMERATED "1-16" AND FURTHER ALLEGES AS FOLLOWS:

24. That the employees of the defendant as aforesaid jointly and severally assaulted and battered the plaintiff causing him to sustain severe personal injuries.

25. That by reason of the foregoing, the plaintiff has been damaged in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A FOURTH CAUSE OF ACTION AGAINST DEFENDANT CITY OF NEW YORK, PLAINTIFF RESTATES AND REALLEGES EACH AND EVERY ALLEGATION SET FORTH IN PARAGRAPHS MARKED AND ENUMERATED "1-16" AND FURTHER ALLEGES AS FOLLOWS:

26. Upon information and belief, the actions taken as aforesaid by Police Officer Sean Keegan and the other unknown Police Officers constituted excessive force, conspiracy to cover up excessive force, violations of the Fourth Amendment, and deprivation of liberty without due process of law.

27. Upon information and belief, at all times pertinent hereto, New York City encouraged, permitted and tolerated a pattern and practice of excessive force, conspiracy to cover up excessive force, violation of the Fourth Amendment, and deprivation of liberty without due process of law by Police Officers of the City of New York.

28. Upon information and belief, the City of New York has a policy, express or implied, to permit and encourage its Police Officers to use excessive force on civilians, to cover up the use of Excessive force, to orchestrate cover ups, to devise false versions of events, and that this policy has been indoctrinated into the New York Police Department so that Officers in the course of their duty are more likely to use excessive force upon civilians, including civilians who are handcuffed and injured and to cover up the use of force.

29. This pattern and practice of use of excessive force has been in effect for decades. The following are examples of the police using excessive force, although there are thousands of other well documented cases of the use of Excessive force by the Police Department of the City of New York, which could also be included herein.

30. On April 17, 1985, Mark Davidson was arrested by undercover detectives on charges of drug dealing. He was taken to the 106th Precinct in Ozone Park, where he was beaten and

tortured with a stun gun. He was threatened with torture on his genitals into making a false confession. On May 3, 1986, Police Officers Sgt. Richard Pike, Jeffrey Gilbert and Loren MacLary were each convicted of assault and were sentenced to four to six years.

31. On December 22, 1994, 29 year old Anthony Baez was choked to death by police officer Francis X. Livotti in the University Heights Section of the Bronx. In 1998, Livotti was convicted of violating Baez's Civil rights, and two other officers were convicted of lying on the witness stand at Livotti's trial.

32. On August 9, 1997, Police Officer Justin Volpe in Brooklyn sodomized Abner Louima with a broken broom handle in the 70th Precinct bathroom. Officer Volpe pled guilty and received a sentence of 30 years in Federal prison. Other officers were convicted on charges stemming from the initial cover up.

33. On February 4, 1999, four plainclothes NYPD officers assigned to the Street Crime Unit in the Bronx fired 41 gunshots at Amadou Diallo, killing him. Diallo was unarmed. The Officers were subsequently acquitted of criminal charges in 2000.

34. On March 16, 2000, at the Wakanda Lounge on 8th Avenue, in Manhattan, Police Officer Vasquez shot unarmed Patrick Dorismond to death. Vasquez was never indicted by a grand jury for Dorismond's death. Then Mayor Rudy Giuliani released Patrick Dorismond's sealed juvenile records immediately after his death to the ire of the African American Community. The City of New York paid the Dorismond family 2.25 Million Dollars to settle a lawsuit on or about March 12, 2003.

35. On May 22, 2003, Ousmane Zongo, was shot four times by Police Officer Bryan Conroy in a Chelsea warehouse. Conroy was found guilty of criminally negligent homicide in 2005 and sentenced to 5 years probation.

36. On January 24, 2004, Housing Bureau Officer Richard Neri, Jr. fatally shot Timothy Stansbury, a 19 year old African American, who was on the roof of a Bedford-Stuyvesant housing project. Stansbury was unarmed. Officer Neri was cleared of all charges.

37. On November 25, 2006, Sean Bell was shot and killed, and his two friends were wounded, one critically, outside of the Kalua Cabaret in Jamaica. Sean Bell was unarmed. Police Officers fired fifty rounds at his car. Detective Michael Oliver, Detective Isnora, and Detective Marc Cooper were all cleared of criminal charges.

38. Transit Officer Jorge Arbaje-Diaz kidnapped, robbed and tortured drug dealers while a police officer and stole more than 1600 pounds of cocaine and four million dollars in cash. In June 2011, he was sentenced to 20 years in prison.

39. On October 15, 2008, five officers allegedly sodomized Michael Mineo with a police radio antenna and expandable baton while he was handcuffed. Officer Kern was charged with aggravated sexual abuse and assault, Police Officers Cruz and Morales were charged with hindering prosecution. All three officers were acquitted.

40. In May 2010, Adrian Schoolcraft, a former NYPD officer publicized recordings made while on duty, showing a pattern of corruption and retaliation against him for refusing to cooperate. His tapes included evidence of Officers detaining citizens without charges to meet quota and Officers failing to report serious crimes, including rape, to make their department appear to be reducing crime rates. Schoolcraft was arrested by armed officers who imprisoned him at Jamaica Hospital alleging that he was an emotionally disturbed person. Lawyers for the City served a subpoena on Graham Rayman, the journalist who reporting Schoolcraft's secret recordings. A Federal Judge ruled that the City of New York could only access limited materials. The City eventually settled its claim with Schoolcraft.

41. In August 2010, 11 year old Briana Ojeda died from an asthma attack after NYPD Officer Alfonso Mendez denied her mother's pleas to perform CPR. Ojeda's mother was driving her daughter to the hospital, when she asked Officer Mendez for help. Mendez smirked at her, said he didn't know CPR and tried to ticket her for going the wrong way down a one way street, which seems incredibly insensitive to the needs of a dying 11 year old in the car. By the time an ambulance arrived because an onlooker had contacted one, it was too late for the 11 year old, who died due to Officer Mendez's cruelty.

42. An Occupy Wall Street protestor named Michael Premo was arrested on December 17, 2011 and charged with assaulting Officers. A Video taken by a freelance photographer showed the exact opposite, that Officers tackled Premo. Prosecutors claimed no video of the arrest existed, yet the freelance photographer video also showed an NYPD officer filming the arrest.

43. On February 2, 2012, 18 year old Ramarley Graham was chased into his Bronx Home by plainclothes NYPD officers. Graham was shot dead in the chest inside his home. Graham was not armed. An indictment against the officers was thrown out due to a technicality and the second grand jury voted not to file charges against the Officers.

44. On July 21, 2013, 37 year old Kyam Livingston died in police custody at the 70th precinct. She was denied repeated requests for medical attention.

45. On September 29, 2013, undercover police officers on motorcycles were involved in chasing Alexian Lien's car on the Henry Hudson Parkway where he was pulled from his vehicle and beaten. A total of five off duty officers were present on the West Side Highway, either undercover or off duty and participated or observed and failed to stop motorcyclists from beating Mr. Lien. Detective Braszczok was arrested.

46. On July 17, 2014, Eric Garner was put in a chokehold after being arrested for selling cigarettes. No Police Officers were ever indicted or charged for his death, but Ramsey Orta who filmed the video was harassed by the Police, charging him with 26 felonies. Ramsey Orta eventually plead guilty to two felonies. A Grand Jury in Richmond County failed to indict the Officer who put Eric Garner in a chokehold.

47. On November 20, 2014, unarmed 28 year old Akai Gurley was hit by a ricochet discharged from a police officer's weapon in a Brooklyn Hosing Project. Police Officer Liang was convicted of manslaughter. On the day he was convicted, Police Commissioner fired him.

48. In 2019, the City of New York paid over Sixty Eight Million Dollar for Police misconduct lawsuits.

49. Upon information and belief, the City of New York has a policy of condoning this conduct, including multiple shootings, death by other means, lying about quotas, lying about arrests, cover ups, drug dealing, and theft, by not implementing or maintaining a policy of a system of review of Police Officer misconduct. The City of New York's policies toward police misconduct is so untimely and cursory as to be ineffective, and its policy permits and tolerates the excessive force, cover ups, violations of the fourth amendment, and deprivations of liberty without due process of law by Police Officers.

50. At all times pertinent hereto, Police Officer Sean Keegan and the other unknown Police Officers were acting within the scope of their employment and pursuant to the aforementioned policies and practices of the City of New York. These policies and practices which were enforced by Defendant City of New York were the moving force, proximate cause, and/or the affirmative link behind the conduct causing the plaintiff's injuries.

51. The City of New York is therefore liable for the violations of Plaintiff's constitutional rights by Police Officers John Does 1-2.

52. That by virtue of the foregoing, Plaintiff has been damaged in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A FIRST CAUSE OF ACTION PURSUANT TO 42 USC 1983, AGAINST DEFENDANT POLICE OFFICER SEAN KEEGAN, PLAINTIFF RESTATES AND REALLEGES EACH AND EVERY ALLEGATION SET FORTH IN PARAGRAPHS MARKED AND ENUMERATED "1-16" AND FURTHER ALLEGES AS FOLLOWS:

53. Upon information and belief, the actions taken as aforesaid by Police Officer Sean Keegan constituted excessive force, in violation of the Fourth Amendment and a deprivation of liberty without due process of law under the Fifth and Fourteenth Amendments.

54. Upon information and belief, Police Officers Sean Keegan acted with actual malice toward the Plaintiff and with willful and wanton indifference and deliberate disregard for the statutory and constitutional rights of the plaintiff.

55. Solely by reason of the above, the plaintiff sustained severe personal injuries, was rendered sick, sore, lame and disabled, sustained severe nervous shock and mental anguish, great physical pain and emotional upset, some of which injuries are permanent in nature and duration, and plaintiff will be permanently caused to suffer pain, inconvenience and other effects of such injuries; plaintiff incurred and in the future will necessarily incur further hospital and/or medical expenses in an effort to be cured of said injuries; and plaintiff has been and continues to be unable to pursue the usual duties with the same degree of efficiency as prior to this accident, all to plaintiff's great damage.

56. That by virtue of the foregoing, Plaintiffs have been damaged in the amount of TEN MILLION [\$10,000,000.00] DOLLARS.

**AS AND FOR A SECOND CAUSE OF ACTION PURSUANT TO 42 USC 1983,
AGAINST DEFENDANT POLICE OFFICER SEAN KEEGAN, PLAINTIFF RESTATES
AND REALLEGES EACH AND EVERY ALLEGATION SET FORTH IN
PARAGRAPHS MARKED AND ENUMERATED "1-16"
AND FURTHER ALLEGES AS FOLLOWS:**

57. Upon information and belief, the actions taken as aforesaid by Police Officer Sean Keegan BY FAILING TO INTERVENE to stop the other unknown Police Officers from using excessive force and assaulting and battering the plaintiff, was in violation of the Fourth Amendment and a deprivation of liberty without due process of law under the Fifth and Fourteenth Amendments.

58. Upon information and belief, Police Officers Sean Keegan acted with actual malice toward the Plaintiff and with willful and wanton indifference and deliberate disregard for the statutory and constitutional rights of the plaintiff by failing to intervene in the plaintiff being injured by other Police Officers.

59. Solely by reason of the above, the plaintiff sustained severe personal injuries, was rendered sick, sore, lame and disabled, sustained severe nervous shock and mental anguish, great physical pain and emotional upset, some of which injuries are permanent in nature and duration, and plaintiff will be permanently caused to suffer pain, inconvenience and other effects of such injuries; plaintiff incurred and in the future will necessarily incur further hospital and/or medical expenses in an effort to be cured of said injuries; and plaintiff has been and continues to be unable to pursue the usual duties with the same degree of efficiency as prior to this accident, all to plaintiff's great damage.

60. That by virtue of the foregoing, Plaintiffs have been damaged in the amount of TEN MILLION [\$10,000,000.00] DOLLARS.

WHEREFORE, Plaintiff demands Judgment as follows:

I. Judgment on the First Cause of Action on behalf of the Plaintiff Noel Lopez against the City of New York in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction;

II. Judgment on the Second Cause of Action on behalf of the Plaintiff Noel Lopez against the City of New York in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction;

III. Judgment on the Third Cause of Action on behalf of the Plaintiff Noel Lopez against the City of New York in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction;

IV. Judgment on the Fourth Cause of Action on behalf of the Plaintiff Noel Lopez against the City of New York in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction;

V. Judgment on the First Cause of Action on behalf of the Plaintiff Noel Lopez against Defendant Police Officers Sean Keegan in the amount of TEN MILLION (\$10,000.00) DOLLARS;

VI. Judgment on the Second Cause of Action on behalf of the Plaintiff Noel Lopez against Defendant Police Officers Sean Keegan in the amount of TEN MILLION (\$10,000.00) DOLLARS;

VII. Judgment for Punitive Damages against defendant Police Officers Sean Keegan in the amount of TEN MILLION (\$10,000.00) DOLLARS;

VIII. Together with the costs and disbursements of this action, reasonable attorney fees under the Federal Statutes and for such other and further relief as to this Court seems just and proper.

DATED: May 9, 2022
Flushing, New York

Yours, etc.,



ANDREW F. PLASSE & ASSOCIATES LLC
Attorney for the Plaintiff
Office and P.O. Address
163-07 Depot Road, Suite 105
Flushing, NY 11358
(212) 695-5811

VERIFICATION

STATE OF NEW YORK)
COUNTY OF QUEENS) ss.:

I, the undersigned, an attorney duly admitted to practice law in the State of New York, state that I am attorney of record for Noel Lopez, the plaintiff in the within action; I have read the foregoing AMENDED COMPLAINT and I know the contents thereof; the same is true as to my own knowledge, except as to those matters stated to be alleged upon information and belief, and as to those matters, I believe it to be true; the reason why this verification is made by me and not by Noel Lopez, is because he resides outside of the County of Queens, and is outside the principal location of my office which is located in Queens County.

The grounds of my belief as to those matters not stated upon my own knowledge are as follows: Review of his file maintained by my office in the ordinary course of business.

DATED: May 9, 2022
Flushing, New York



ANDREW F. PLASSE